Dated 21st July 1920

The Bank of England

and

Messrs A.J. and Arthur Clark

Deed of Covenant

as to

the erection and repair of a wall between two freehold premises at Priory Lane Roehampton in the County of Surrey known as ~~Clarence~~ Clarence House and Sans Souci

H.M. LAND REGISTRY.
LONDON. W.C.2
TITLE No. 389528
FREEHOLD TITLE
REGISTERED - 2 JUL 1930

W.J. LLOYD & Co.
LAW STATIONERS, PRINTERS, &c.
18, SANDLAND STREET,
Bedford Row
LONDON, W.C.

Please draft
date

TEN SHILLINGS
21 7 20

This Indenture

made this Twenty first day of July One Thousand nine hundred and twenty Between The Governor and Company of The Bank of England (hereinafter called the Bank) of the one part and Alexander James Clark and Arthur Clark both of Priory Lane Roehampton in the County of London Horticulturists (hereinafter called the Covenantees) of the other part Supplemental to an Indenture of Conveyance and Release hereinafter called the Principal Indenture) dated the Twentieth day of July One thousand nine hundred and seventy and made between Christopher Hatton Turnor and John Edmund Philip Spicer (therein called the Mortgagees) of the first part Vivian Hugh Smith Owen Hugh Smith and Lancelot Hugh Smith (therein called the Executors) of the second part and the Covenantees of the third part whereby for the consideration therein mentioned the Covenantees at the request of the Executors released unto the Mortgagees All that the estate right title and interest of them the Covenantees or either of them in the strip of land coloured green on the plan therein mentioned and the wall built thereon under or by virtue of an Agreement dated the twenty first day of September One thousand nine hundred and eight and made between Hugh Colin Smith of the one part and the Covenantees of the other part or otherwise howsoever subject to such right of redemption as was in the Principal Indenture mentioned And whereas the release by the Covenantees referred to in the above recital was required for the purposes of enabling the said strip of land and the said wall to be conveyed to the Bank in pursuance of an Agreement between the Executors and the Mortgagees with the Bank and for the purpose of inducing the Covenantees to enter into the principal Indenture the Bank agreed to enter into the covenants hereinafter contained Now this Indenture witnesseth that in pursuance of the said agreement and in consideration of the Covenantees at the request of the Bank having executed the principal Indenture at or before the time of the execution of these presents The Bank for itself and

The date will be filled in later
Ls H

its successors and assigns hereby covenants with the Covenantees and with each of them their and his heirs and assigns in manner following that is to say

1 The Bank will forthwith at its own risk and expense in all respects erect on their premises adjoining the south side of the strip of land coloured red on the plan referred to in the Principal Indenture a wall of the same height as and of material and in appearance similar to the wall now in existence on the strip of land coloured green on the said plan on the north side thereof

2. The Bank Will for ever hereafter maintain in good repair and condition the said wall now in existence on the said strip of land coloured green and also the wall hereafter to be erected as aforesaid on the south side of the said strip of land coloured red on the said plan

3. And in erecting the wall on the south side of the said strip of land coloured red on the said plan as aforesaid the Bank will use their best endeavours to carry out the work so that the footings of the said wall shall not interfere except so far as may be unavoidable with the roots or branches of the Hedge belonging to the Covenantees on the north side of the said strip of land coloured red on the said plan and will carry out the said work of erection in such a manner as not to cause any avoidable destruction or damage to the said hedge or any part thereof but the Bank shall not be liable under this Clause for any unavoidable damage or destruction to the said hedge Provided always that in no case shall the footings of the said wall be placed within eighteen inches from the stem of the holly bush which constitutes the said hedge

4 The costs of both parties of and incidental to the preparation completion and stamping of this Indenture shall be borne by the Bank

In witness whereof the Bank has hereunto caused

its Common Seal to be affixed and the Covenantees have hereunto set their hands and seals the day and year first above written

The Common Seal of the Governor and Company of the Bank of England was hereunto affixed in the presence of

Directors

Secretary

Signed Sealed and Delivered by the above named Alexander James Blair in the presence of

Signed Sealed and Delivered by the above named Arthur Clark in the presence of